

# ACME CORP — STANDARD VENDOR AGREEMENT

## 1. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and continue for twelve (12) months. Either party may terminate for convenience upon thirty (30) days written notice. The Company may terminate immediately for material breach.

## 2. PAYMENT TERMS

Vendor shall invoice monthly. Payment is due Net 60 from receipt of invoice. Late payments accrue interest at 1.5% per month. Company may dispute invoices within 15 days of receipt.

## 3. LIABILITY CAP

Total liability for either party shall not exceed fees paid in the three (3) months preceding the claim. Neither party shall be liable for indirect, incidental, or consequential damages under any circumstances.

## 4. INTELLECTUAL PROPERTY

All deliverables, work product, and custom developments created by Vendor shall be the sole and exclusive property of the Company, including all intellectual property rights therein.

## 5. CONFIDENTIALITY

Vendor agrees to maintain strict confidentiality of all Company information for five (5) years following termination. Vendor shall not disclose Company information to any third party without prior written consent.

## 6. GOVERNING LAW

This Agreement shall be governed by the laws of the State of Delaware. Disputes shall be resolved through binding arbitration in Wilmington, Delaware under AAA rules.

## 7. INDEMNIFICATION

Vendor shall indemnify, defend, and hold harmless Company from any third-party claims arising from Vendor's breach or negligence. Liability is mutual and proportional to fault.

## 8. NON-COMPETE

During the term and for one (1) year following termination, Vendor shall not provide substantially similar services to any direct competitor of Company.

## 9. AUTO-RENEWAL

This Agreement shall NOT automatically renew. Renewal requires a written amendment signed by both parties no later than 30 days before expiration.

## **10. AUDIT RIGHTS**

Company reserves the right to audit Vendor records related to this Agreement upon 5 business days written notice, no more than once per calendar year.